Alabama Rules of Appellate Procedure

Rule 52.

Anonymity in appellate proceeding, opinions and case styles.

In any case involving a juvenile who has been the subject of a proceeding in the juvenile court system, a person granted youthful-offender status, a victim of child abuse, or a victim of a sex offense, the appellate court shall make reasonable efforts to preserve the anonymity of such a person. This anonymity shall be observed in the body of any opinion, in the styling of the case, and in any documents filed with the appellate courts. The front cover of the document being filed shall be clearly identified by the filer in accordance with the provisions of Rule 28(d)(8), Rule 32(a)(2)(F), or Rule 32(a)(3)(C) of these rules.

The records and papers filed, or caused to be filed, in the appellate court by the parties in any proceeding subject to this rule shall be open for inspection only to counsel of record, and, upon order of the appellate court, to others having a proper interest therein.

[Adopted 2-12-90, eff. 3-12-90; Amended 3-1-2010, eff. 6-1-2010.]

Committee Comments

This rule is to be observed in both criminal and non-criminal cases. This rule has particular application in cases involving juveniles charged with offenses that would be criminal except for the party's status as a juvenile; proceedings to transfer a juvenile for trial as an adult; proceedings to terminate parental rights; proceedings involving children alleged to be dependent; adoption proceedings; criminal cases involving victims of sex offenses or child abuse or neglect; and appeals involving persons granted youthful offender status.

This rule contemplates that anonymity will be observed in the styling of cases by the use of such devices as styling cases sequentially as "Anonymous 1 v. State," "Anonymous 2 v. State," etc.; or styling cases with anonymous sequential initials, such as "A.A. v. State," "A.B. v. State," etc.; or styling cases with the parties' initials, such as "R.G. v. State," or "S.W. v. Department of Human Resources." It contemplates that anonymity will be observed in the body of an opinion by such references as "the juvenile"; "A.R."; "the child"; "the 14year-old"; "the victim," etc. It also contemplates that the parties will use such references in their briefs, motions, and other papers filed with the appellate court when the court has so directed.

Note from the reporter of decisions: The order amending, effective June 1, 2010, Rule 28(d)(8), Rule 32(a), and Rule 52, Alabama Rules of Appellate Procedure, and adopting Rule 56 and the Court Comment to Rule 56, Alabama Rules of Appellate Procedure, is published in that volume of *Alabama Reporter* that contains Alabama cases from ___ So. 3d.